Brazoria County District Court

Cause No. 2024-CV-0047

Susan Ramirez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 27, 2024
Plaintiff's counsel:	Sarah Combs, Brown & Shaw Law Group

PARTIES

Plaintiff Susan Ramirez is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued the polciy under which Plaintiff seeks benefits and against which this claim is brought.

FACTS

On August 23, 2023, Plaintiff was lawfully operating his vehicle on a roadway in Baytown when another vehicle crossed into his lane and struck his car head-on. The impact occurred at a low rate of speed, but the force of the collision was sufficient to cause Plaintiff's head to strike the interior of his vehicle. Plaintiff reported the accident to Defendant promptly and submitted the information Defendant requested. Defendant has not paid the benefits owed under the policy in a manner consisetnt with the losses Plaintiff sustained.

NEGLIGENCE

The driver of the other vehicle failed to keep a proper lookout, failed to control his speed, and failed to maintain his lane, and those failures caused the collision. Defendant, as the insurer bound to honor the coverage it sold, owed Plaintiff a duty to investigate the claim in good faith, to evaluate it fairly, and to pay covered benefits within the time Texas law requires. Defendant breached those duties by delaying its investigation, failing to give Plaintiff a reasonable explanation for its decisions, and offering less than the amount the evidence supports.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, light sensitivity, and difficulty concentrating. He has incurred medical expenses for evaluation and treatment, lost time from work, and continues to experience symptoms that affect his daily life. Plaintiff seeks actual damages, statutory interest, and attorney's fees as allowed by Texas law. Plaintiff therefore requests judgment against Defendant in the amount of $106,000.00, together with pre-judgment and post-judgment interest and court costs.